JOHN LOUDERMILK v. DOLLAR GENERAL

21CV45482

PLAINTIFF’S MOTION TO COMPEL WRITTEN DISCOVERY

This action arises from an alleged breach of duty to provide safe premises resulting in a slip and fall injury to plaintiff John Loudermilk.

On July 19, 2023, plaintiff propounded the following discovery on defendant Dolgen California, LLC, (erroneously named as “Dollar General”): form interrogatories; request for production of documents; and special interrogatories, sets one. No response has been provided. No opposition to the Motion to Compel was filed.

The Motion to Compel is **GRANTED.** Defendant Dolgen California, LLC, is to produce complete verified answers, without objection, and produce all responsive documents in its care, custody or control, to plaintiff’s form interrogatories, request for production, and special interrogatories, sets one, by November 17, 2023.

As this motion was not opposed, no monetary sanctions are awarded.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to submit a formal Order in conformity with this Ruling.

SMITH v. WOLFMAN, et al.

22CV46316

DEFENDANTS' MOTION FOR STAY OF PROCEEDINGS; PLAINTIFF'S OSC/Motion FOR PRELIMINARY INJUNCTION

Plaintiff's complaint seeks a Demand for Accounting; Declaratory Relief; Breach of Fiduciary Duty; Involuntary Dissolution of Limited Liability Company; Fraud and Deceit; Conversion; Breach of Fiduciary Duty; and Unjust Enrichment due to the sale of all assets of the entity WolfSmith, LLC. Defendants seek a Stay of Proceedings, pursuant to Corporations Code Section 17707.03. Plaintiff Smith seeks to enjoin WolfSmith from transferring assets or monies to defendant Wolfman.

REQUEST FOR STAY

Plaintiff filed a Request for Dismissal of the Fifth Cause of Action for Dissolution of Limited Liability Company, on October 12, 2023, thus rendering the Request for Mandatory Stay MOOT; on that basis, the Motion For Stay is DENIED.

ORDER to SHOW CAUSE and MOTION for PRELIMINARY INJUNCTION

The general rule concerning pleading a cause of action in fraud, breach of fiduciary duty or unjust enrichment to justify a preliminary injunction is that it must be specifically pleaded, and the complaint or declarations must state specific facts of how and where the wrongful activity occurred. Vague conclusory terms such as: "under the false pretense that false promises," "intentional representations," "irreparable harm," "immediate danger," "The fraud of Defendants, and each of them, was and is malicious, oppressive, despicable, and justifies the recovery of punitive and exemplary damages in amounts according to proof" are insufficient.

The effect of this general rule is twofold: (1) the facts constituting fraud must be alleged factually and specifically; and (2) every element of the cause of action for fraud must be alleged in the proper manner. The policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect [*Hall v. Department of Adoptions* (1975) 47 Cal. App. 3d 898, 904*; Bank of America v. Vannini* (1956) 140 Cal. App. 2d 120, 130 (party pleading defense based on fraud required to set forth all elements of fraud)].

Code of Civil Procedure § 526(a) provides that "The general purpose of a preliminary injunction is to preserve the *status quo* pending a determination on the merits of the action … '[A]s a general matter, the question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief.' [Citation omitted] Typically, the trial court's evaluation of